

saster



proxies, in mining. On Congress's complaint, the Raj Bhavan was forced to inquire whether senior BJP leaders like former chief minister Sunderlal Patwa, former minister Ajay Bishnoi, Mining and Mineral Resources Minister Laxmikant Sharma, Urban Administration Minister Narottam Mishra and Chief Minister Shivraj S. Chauhan had mining leases. If yes, were they running the mines without environmental clearance?

The Opposition Congress does not have a clean record. It has a bevy of politicians who have had a finger in the mining pie. AICC General Secretary Satyavrat Chaturvedi's family has mining interests in the state as does former minister K.P. Singh, who was caught in a controversy over illegal mining in Shivpuri. Currently, one of the biggest Congress names in this sector is Satyendra Pathak, a former minister in

DOWN AND DIRTY: Bauxite mining in Katni has contaminated water



assent of MPPCB for mining minor minerals is mandatory.

■ Violation of the Water and the Air Acts can attract penalty as well as an impris-

onment of one-and-a-half to six years.

■ The two acts also provide for punishment of officials, who fail in their duties regarding environment conservation.



"We are working closely with the mining department to ensure that the high court order is obeyed."

JAYANT MALLAIYA
HOUSING AND ENVIRONMENT MINISTER

Cement Company, a private enterprise.

But why has the situation been allowed to worsen so much that every agency that should have enforced environmental laws has, on the contrary, fought shy of discharging its role? The answer lies in large-scale interests of politicians, who operate mostly through

Digvijay Singh's cabinet. The Pathaks of Katni are, in fact, the counterparts of Bellary's mining syndicates. It is not clear at present if the mining magnates of the ruling and Opposition parties have any violations against their names. However, MPPCB officials admit that their efforts to enforce Air and

Water Acts have always been suppressed from the top.

The result of this was: illegal mining of white sandstone threatened to damage priceless medieval archaeological heritage of Bateswar Temples in the Morena district last year. Frustrated at his repeated pleas falling on the administration's deaf ears, Archaeological Survey of India's Superintending Archaeologist K.K. Muhammad, last year, took the unusual step of writing to RSS Sarsangchalak K.S. Sudershan. He says, "We could convince dacoits of Chambal to spare the monuments. But it was impossible to deal with the mining mafia." Finally, on October 2, 2007, a team of district administration, police, forest and mining officials went in to evict illegal miners but was met with a volley of gunfire. It was only through retaliatory gunfire that the team managed to drive the illegal miners away. Clearly, only high-profile intervention has worked so far, that too in isolated cases. It took environmental activist Ajay Dubey almost a year to procure documents from MPPCB and the mining department through the Right to Information (RTI) Act to be finally able to file a PIL in the high court that led to the order of mass closure of illegal mines.

As soon as the issue of large-scale illegal mining threatened to spill on to public domain, the MPPCB hastily held special camps for awarding consents to mine lease holders and organised workshops to apprise them of the provisions of the Act. Its Jabalpur office issued closure notices to 164 mines in one go in April last year while the one in Rewa issued another set of 122 notices to errant mine owners in a single day. Still, a large number of mines continued their free run before the court stepped in. After the July 2 closure order though, mining lease holders are flocking to MPPCB's regional offices and headquarters to get the mandatory consent. But the matter is hardly over. Action, which includes penalty and imprisonment, needs to be taken against the violators. "We also plan to press the MPPCB to take action against the officials who ignored the violations for such a long time," Dubey says. The battle to clean up the mess left by these violations, it seems, would be a long and hard one. ■